



CHAPTER cxxix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Partick Burgh. A.D. 1911.
[18th August 1911.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Partick Burgh Order Confirmation Act 1911. Short title.

A.D. 1911.

SCHEDULE.

PARTICK BURGH.

Provisional Order to provide for the application of certain sums of money belonging to the burgh of Partick to enable the Town Council of that burgh to raise money by bills to constitute a dean of guild court for the burgh to enlarge the powers of the Town Council in relation to their electricity undertaking to amend the Burgh Police (Scotland) Acts and other Acts in their application to the burgh to confer further powers on the Town Council and for other purposes.

WHEREAS the burgh of Partick is under the management and administration of the provost magistrates and councillors thereof (hereinafter called "the Town Council") and the Town Council are the local road and sanitary authority within the said burgh (hereinafter called "the burgh") under and for the purposes of the Burgh Police (Scotland) Acts 1892 to 1903 the Roads and Bridges (Scotland) Act 1878 the Public Health (Scotland) Act 1897 and other Acts applicable to the burgh:

And whereas the population of the burgh exceeds sixty-six thousand persons and is rapidly increasing:

And whereas the First Schedule to this Order contains a statement of certain sums of money received from time to time by and presently in the hands of the Town Council for the application of which no provision is made by statute or otherwise and it is expedient that the Town Council should be authorised to apply such money for the purposes and in the manner provided by this Order:

And whereas it is expedient to confer on the Town Council the powers in this Order contained with reference to the raising of money by bills and promissory notes:

And whereas it is expedient to empower the Town Council to grant gratuities to their officers and servants and their dependents

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and to provide for the establishment of a superannuation fund A.D. 1911.
for the benefit of such officers and servants : —

And whereas it is expedient to provide for the constitution of a dean of guild court for the burgh and to regulate the proceedings of the court :

And whereas by the Partick Electric Lighting Order 1893 the Town Council were authorised to supply and are supplying electrical energy within the burgh and it is expedient that the further powers contained in this Order should be conferred on the Town Council in connection with their electricity undertaking :

And whereas it is expedient to amend in relation to the burgh the provisions of the Town Councils (Scotland) Acts 1900 and 1903 with regard to the filling up of casual vacancies on the Town Council :

And whereas it is desirable to confer upon the Town Council such further powers for the prevention of and for minimising the danger arising from fire as are contained in this Order :

And whereas it is expedient to amend in other respects as enacted in this Order the provisions of the Burgh Police (Scotland) Acts 1892 to 1903 and the other Acts referred to in this Order in their application to the burgh and to confer upon the Town Council such further powers as are herein contained :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Partick Short title.
Burgh Order 1911.

2. This Order shall except where otherwise provided Commence-
ment of
Order.
commence and have effect on and from the date of the passing of the Act confirming the same which date is herein-after referred to as “the commencement of this Order.”

3. Words and expressions to which meanings are assigned by Interpreta-
tion.
the Burgh Police (Scotland) Acts 1892 to 1903 and the Town Councils (Scotland) Acts 1900 and 1903 have in this Order the

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A.D. 1911. same respective meanings unless there be something in the subject or context repugnant to such construction:

And in this Order—

The expression “the burgh” means the burgh of Partick;
and

The expression “the Town Council” means the provost magistrates and councillors of the burgh.

Establish-
ment of
special fund.

4.—(1) Upon the commencement of this Order the sums of money mentioned in the First Schedule to this Order together with the interest accrued thereon at that date (herein-after called “the special fund”) shall be carried to a separate account in the books of the Town Council to be called the Partick Burgh Order 1911 Special Fund Account and the provisions of the Town Councils (Scotland) Act 1900 as amended with regard to accounts and audit shall apply to the said account Provided that in auditing the said account the auditor shall have regard to the powers conferred on the Town Council by subsection (4) of this section.

(2) The Town Council may out of the special fund defray such proportion as the Town Council may determine of the costs charges and expenses of and incident to the preparing for obtaining and confirming this Order and otherwise in relation thereto.

(3) The Town Council may invest the special fund or the balance thereof and any unapplied balance of the revenue thereof in any securities in which trustees are by the law of Scotland for the time being authorised to invest trust moneys or in the purchase of heritable property or of superiorities feu duties ground annuals or other income arising out of a charge upon land and may from time to time vary such investments such investments being taken in the name of the provost magistrates and councillors of the burgh.

(4) The Town Council may from time to time apply the revenue of the special fund including accumulations of revenue (if any) to such purposes in the interests of the burgh as they in their sole discretion may think fit.

Power to
raise money
by bills.

5. Instead of raising for any purpose by the creation and issue of stock or by bonds or mortgages money which they are authorised to raise by either of those methods the Town Council

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may if they see fit raise money for those purposes by means of bills subject to and in accordance with the following provisions :— A.D. 1911.

- (1) Bills issued by the Town Council shall be called "Partick Corporation bills":
- (2) A Partick Corporation bill shall be a bill in the form prescribed by regulations made in pursuance of this Order for the payment of the sum named therein in the manner and at the date therein mentioned so that the date be not less than three nor more than twelve months from the date of the bill:
- (3) Such bills may be offered for purchase by tender in such manner on such conditions and after public advertisement in such manner as the Town Council determine:
- (4) The bills shall be issued under the authority of a warrant sealed by the Town Council:
- (5) Each bill shall be for the amount directed by the Town Council not being less than five hundred pounds:
- (6) Each bill shall be under the seal of the Town Council:
- (7) A register of the bills issued or renewed by the Town Council shall be kept by the chamberlain or treasurer of the Town Council or such other person as may be appointed by the Town Council and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Town Council:
- (8) The Town Council shall not issue bills payable to bearer:
- (9) The Town Council shall before issuing any bill under this Order from time to time make regulations with respect to bills subject to and in accordance with this Order and shall furnish to the Secretary for Scotland a copy of any regulations so made Such regulations shall provide—

(A) For regulating the preparation form mode of issue mode of payment and cancellation of bills;

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(B) For regulating the issue of a new bill in lieu of one defaced lost or destroyed;

(C) For preventing by the use of counterfoils or of a special description of paper or otherwise fraud in relation to bills;

(D) For the proper discharge to be given upon the payment of a bill:

(10) The Town Council may enter into such arrangements with any bank for carrying into effect the provisions of this Order with respect to the issue of bills and to the payment of the principal sum named therein and to all matters relating thereto and for the proper remuneration of such bank with reference thereto as they may think proper. Such remuneration shall be apportioned between the several funds or rates to which the principal moneys raised by the bills are chargeable:

(11) The amount of money received by the Town Council in respect of a bill shall be deemed to be principal money raised by means of such bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(12) The Town Council shall provide from the same source and pay at the appropriate times into a sinking fund or sinking funds the same sums for repayment of the principal money so raised as they would have done if bonds or mortgages of the same amount had been issued and such fund or funds shall be dealt with in the same manner as if the same were a bond or mortgage sinking fund and the Town Council shall pay the interest on the principal money out of the fund or rate to which the principal money so raised is charged:

(13) The aggregate amount payable on bills current at any one time shall not exceed the sum of fifty thousand pounds except by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills:

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- (14) The Town Council may subject to the provisions of A.D. 1911.
the preceding subsection renew bills at maturity:
- (15) Money raised by the issue of bills shall be employed
by the Town Council for the purposes of the several
statutory borrowing powers in respect of which the
bills are respectively issued:
- (16) For the repayment of the principal money raised by
bills the Town Council may raise money by the
creation of stock or issue of bonds mortgages or
further bills but save as aforesaid the powers given
to the Town Council to raise moneys by the creation
of stock bonds or mortgages shall be suspended to
the extent to which moneys have been raised by the
issue of bills:
- (17) A Partick Corporation bill shall entitle the holder to
payment at maturity of the sum expressed in such
bill to be payable and shall be charged on all the
revenues of the Town Council:
- (18) The town clerk of the burgh shall within twenty-eight
days after the fifteenth day of May in any year
during which any bills have been issued or paid off
or are outstanding under this section transmit to the
Secretary for Scotland a return in such form as the
said secretary may prescribe and containing all such
particulars as he may require in regard to the issue
and payment of bills by the Town Council:
- (19) In this section the words "bill" and "bills" include
respectively "promissory note" and "promissory
notes."

6. Except as in any public general statute otherwise expressly provided all bonds or mortgages for moneys borrowed by the Town Council under the powers of any Act or Order relating to the burgh may be renewed and discharged by minutes of renewal or discharge in or as near as may be in the forms contained in the Second Schedule to this Order. Renewal and discharge of bonds and mortgages.

7.—(1) The Town Council may grant a gratuity to any of their officers or servants (other than a police constable within the meaning of the Police (Scotland) Act 1890) who may through bodily or mental infirmity duly certified by a legally qualified medical practitioner become incapable of performing his Power to grant gratuities.

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A.D. 1911. duty or to the widow or family of any officer or servant (other than as aforesaid) who may die in the service of the Town Council.

(2) Every such gratuity shall be paid out of the fund rate assessment or revenue on which the salary or wages of the officer or servant would have been charged or paid if he had continued in his office or service and no gratuity shall exceed the amount of one month's pay for every completed year of approved service.

Establish-
ment of
superannua-
tion fund.

8. The Town Council may with the approval and sanction of the Secretary for Scotland establish a superannuation fund for such of their officers and servants (other than police constables within the meaning of the Police (Scotland) Act 1890) as may receive injuries in the performance of their duties or from sickness old age or other bodily disability be prevented from continuing or on account of long service may be desirous of ceasing to continue in the service of the Town Council and subject to such approval and sanction may levy contributions on their officers and servants and deduct the same from their salaries and wages and may contribute to the fund a sum equal in amount to the contributions of the officers and servants and may subject to such approval make rules and regulations for the management of the fund and for the future government of the same and the mode in and extent to which the benefits of the same shall be allowed and taken and may subject to such approval from time to time alter and amend such rules and regulations Provided always that all such rules and regulations and any alteration or amendment thereof shall be submitted to and approved of by the officer for the time being appointed by law to revise the regulations of friendly or benefit societies and shall not be binding until so approved of.

Power to
retain sell
&c. lands.

9.—(1) The Town Council may retain hold and use for such time as they may think fit and may with the consent of the Secretary for Scotland sell lease excamb or otherwise dispose of in such manner and for such considerations and purposes and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent feu duty or ground annual or of payment in any other form any lands or any interest in lands which at the commencement of this Order are vested in used held or enjoyed by them and may with the

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like consent sell or dispose of any ground annuals feu duties or other rents reserved on the sale lease excambion or disposition of such lands or interest in lands and may make do and execute any deed act or thing proper for effectuating any such sale lease excambion or other disposition of such lands or interest in lands and on any excambion may give or take any money for equality of exchange Provided that upon every sale excambion lease or other disposition of lands interest in lands or rents as aforesaid the value of such lands or interest in lands or rents shall be credited to the fund or revenue out of which such lands or interest in lands or the lands in respect of which such rents were reserved were purchased or paid for.

(2) The Town Council may with the approval of the Secretary for Scotland appropriate and use for any purpose of the Town Council any such lands or interest in lands not required for the purpose for which the same were acquired by or vested in the Town Council.

(3) The consideration for the acquisition by the Town Council of any lands may be either money or land or any yearly sum or ground annuals or feu duties or other rent or a mixed consideration of money and land and on any excambion the Town Council may give or take any money for equality of exchange.

(4) Nothing in this section shall authorise the Town Council to create or permit any nuisance on any such lands.

10. Notwithstanding anything in the Town Councils (Scotland) Act 1900 contained in case of any vacancy occurring in the Town Council from any cause (other than retirement in ordinary rotation at an annual election) between the eighteenth day of October in any year being the last day for the issue of the notice referred to in section 42 (Notice of vacancies and dates of nomination and election) of the Town Councils (Scotland) Act 1900 and the first day of October in the following year the vacancy so occurring shall subject as hereinafter provided be filled up by a special election by the electors of the ward in respect of which such vacancy has occurred and the following provisions shall apply and have effect (that is to say):—

Filling up
of casual
vacancies in
Town
Council.

(1) The election shall be conducted and the costs and charges thereof defrayed in the same manner as in the case of an annual election:

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(2) The town clerk of the burgh as soon as may be after the occurrence of the vacancy shall subject to the approval of the Town Council fix the date of the election and the dates for the issue of all necessary notices and for lodging and withdrawing nomination papers so that the intervals between such respective dates shall be the same as in the case of an annual election and such notices and papers shall be in or as nearly as may be in the forms respectively used in the case of an annual election :

(3) The town clerk shall by notice to be affixed to the outside wall of the municipal buildings in the burgh and also to be published by handbills posted up throughout the ward in respect of which the vacancy has occurred intimate (1) the cause of the vacancy (2) the ward in which the vacancy falls to be filled up (3) the date and place for lodging and withdrawing nomination papers (4) the date of the election in the event of there being a poll and (5) the polling place :

(4) If more than one candidate is nominated for the vacancy the town clerk shall by notice to be affixed and published as aforesaid give the names of all persons so nominated and not withdrawn :

(5) The person elected at the election shall hold the office of town councillor during the period for which the person vacating such office might lawfully have held the same.

Vacancy
within three
months of
annual
election.

11. In case of any such vacancy occurring within three months immediately preceding an annual election the Town Council may resolve that such vacancy shall not be filled up until such annual election.

Resignation
of member
of Town
Council.

12. If any member of the Town Council shall at any time within twenty-one days immediately preceding or on the eighteenth day of October in any year intimate in writing to the town clerk of the burgh his resignation or his intention to resign as a member of the Town Council and shall not withdraw such intimation before the issue in that year of the notice referred to in section 42 of the Town Councils (Scotland) Act 1900 the town clerk shall include in such notice or in the

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amended or supplementary notice hereinafter in this section referred to the name of such member as one of the councillors falling to retire at the next annual election and the resignation contained in such intimation shall thereupon take effect notwithstanding anything contained in section 38 (Councillors may resign office) of the said Act and the vacancy shall be filled up at such annual election: A.D. 1911.

Provided that in the event of the notice mentioned in section 42 of the said Act having been issued prior to the receipt of any such intimation the town clerk shall if time permits to do so not later than the eighteenth day of October issue in the manner prescribed by that section for the intimation of such notice an amended or supplementary notice containing with reference to such vacancy the particulars required under that section.

13. If in any year after the issue of the notice mentioned in section 42 of the Town Councils (Scotland) Act 1900 and on or before the eighteenth day of October in that year a vacancy occurs in the Town Council from any cause other than the resignation of a member the town clerk shall if time permits to do so not later than the said eighteenth day of October issue in the manner prescribed by that section for the intimation of such notice an amended or supplementary notice containing with reference to such vacancy the particulars required under that section. Vacancy
arising after
issue of
statutory
notice.

14. The dean of guild court of the burgh shall from and after the first election thereof as herein-after provided consist of a dean of guild and four other members who shall all be members of the Town Council. The dean of guild and other members of the said court shall be elected annually by the Town Council at the meeting at which the annual election of magistrates takes place and they shall hold office until the election of their successors the first election to be made at the annual election of magistrates occurring next after the commencement of this Order. In the event of any vacancy occurring during any year or in the event of the Town Council failing to elect the members of the said court or any of them at the said meeting the Town Council shall fill up the vacancy or vacancies at a meeting to be held as soon thereafter as possible but the said court may act notwithstanding any deficiency or vacancy in their number so long as a quorum remains in office. The Town Council shall at Constitution
of dean of
guild court.

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A.D. 1911. the time of election prescribe the order of seniority for the purposes of the immediately succeeding section of this Order of the members of the said court From and after the first election of the dean of guild court under this Order there shall be transferred to the said dean of guild court the whole dean of guild jurisdiction whether statutory or at common law possessed by the magistrates of the burgh and by the present dean of guild court of the burgh and from and after that date the magistrates shall cease to possess the aforesaid jurisdiction and the present dean of guild court of the burgh shall be dissolved Provided always that the provisions of the Summary Jurisdiction (Scotland) Act 1908 shall not apply to any proceedings in the dean of guild court and that it shall not be lawful for the dean of guild court to sentence any person to imprisonment in default of payment of any penalty or other sum decerned for either immediately or after an interval or failing recovery thereof by poinding or arrestment.

President
of dean of
guild court
quorum &c.

15. The dean of guild or in his absence one of the other members of the said court according to seniority as such shall preside at meetings of the court and the president shall have a casting vote as well as a deliberative vote Any three or more members of the said court present at any meeting shall constitute a quorum Interlocutors pronounced or ordered at any meeting of the said court shall be signed by the member presiding but deliverances appointing service or intimation of any petition motion or other step of procedure or fixing a diet for hearing parties may be pronounced and signed by any member of the said court without the necessity of a meeting The said court may appoint committees of their number for the purpose of inspecting buildings or streets or disposing of incidental questions arising in any case before them and may delegate any of their powers in connection therewith to the said committees The quorum and convener of any committee shall be fixed and appointed by the said court and the convener shall preside and shall have a casting as well as a deliberative vote Except so far as varied by or inconsistent with this Order the provisions of the Burgh Police (Scotland) Acts 1892 to 1903 relating to dean of guild courts shall apply to the dean of guild court of the burgh constituted by this Order.

Linings may
be granted
for a fixed
period.

16. The dean of guild court of the burgh may in granting any warrant or lining fix the period (not being less than one year) during which such warrant or lining shall remain in force

and any person acting upon such warrant or lining after the expiration of the period so fixed shall be deemed to be guilty of a guild offence and be liable to a penalty of the like amount as such person would have been liable to if he had proceeded without a warrant or lining in the first instance with the work to which the expired warrant or lining relates. A.D. 1911.

17. The Town Council may within the burgh provide sell let for hire and fix repair alter and remove but shall not manufacture lamps meters electric lines fuses switches fittings lampholders motors stoves radiators and other electrical fittings for lighting heating and motive power and for all other purposes for which electrical energy can or may be used (all of which are hereinafter in this section included in the expression "fittings") and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon: Electrical fittings.

Provided as follows:—

- (A) The Town Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing alteration or removal thereof as to meet any expenditure incurred by them under the powers of this section including interest upon moneys borrowed for those purposes and all sums applied either by way of instalments or by way of payments to sinking fund for repayment of moneys so borrowed:
- (B) Every sum charged by the Town Council to a consumer in respect of the provision of such fittings or the fixing repairing alteration or removal thereof shall be separately stated on every demand note delivered by the Town Council to the consumer:
- (C) The sums expended and received by the Town Council in connection with the purposes in this section mentioned in each year (including interest and instalments and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Town Council for that year:

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(D) Any money already expended by the Town Council for the said purposes or for which liability may be incurred under this section shall be deemed to be expenses incurred by them for the purposes of and shall be defrayed in the same manner as expenses incurred by the Town Council under the Partick Electric Lighting Order 1893 and the purposes of this section so far as the same are purposes to which capital is properly applicable shall be deemed to be purposes for which the Town Council may apply any money already borrowed or authorised to be borrowed or may borrow additional money under the provisions of the said Order and the Electric Lighting Acts 1882 to 1909.

Further power to recover electrical charges in respect of furnished houses.

18. The Town Council may in addition to their recourse against the actual consumer of electrical energy charge and recover from the tenant of any house or other premises who sub-lets such house or premises furnished for a period less than two months the amount of rates and charges for electrical energy used and consumed by the sub-tenant during the sub-tenancy and any other sums due to the Town Council in connection with the supply of electrical energy to such sub-tenant during such sub-tenancy.

Power to lay mains in streets not dedicated to public use.

19. The Town Council may on the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to the public use within the burgh supply such premises with electrical energy and may lay down alter relay or renew in across or along such street such mains cables service lines and other works as may be requisite and proper for furnishing such supply and the provisions of the Partick Electric Lighting Order 1893 with respect to the breaking up of streets for the purpose of laying mains cables service lines and other works and for the protection of the same when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

As to buildings causing risk of fire.

20. When application is made to the dean of guild court of the burgh for warrant for the erection of a house or building which in the opinion of the court from its size or situation or the use to which it is intended to be put is likely to cause

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extra or undue risk of fire to adjoining or neighbouring houses or buildings or to such building itself the court may require such precautions to be taken and such works to be executed in connection with such house or building as the court may consider proper for the protection of such adjoining or neighbouring houses or buildings or of such proposed house or building and a failure to comply with a requirement of the court under this section shall in the application to the burgh of the Burgh Police (Scotland) Act 1903 be deemed to be included among the offences in respect of which a penalty is imposed by section 41 subsection (1) of the said Act.

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21. No public bazaar or public entertainment of any description shall be held in any building unless the occupier of such building or the person in charge of any such intended bazaar or entertainment shall twenty-four hours previous to the holding thereof give notice of the intention to hold the same to the Town Council and unless there shall be provided therein if considered necessary by the firemaster of the burgh sufficient fire-extinguishing appliances to the satisfaction of the firemaster and if also considered necessary by him unless a qualified fireman shall be in charge of such building during the holding of such bazaar or entertainment Any person contravening this section shall be liable to a penalty not exceeding five pounds recoverable as penalties for police offences are recoverable under the Burgh Police (Scotland) Act 1892.

Precautions
against fire
in case of
public enter-
tainments.

22. The firemaster and all members of the fire brigade of the Town Council may be enrolled as constables and if so enrolled shall be entitled to act as constables on all occasions of fire.

Firemaster
and fire bri-
gade to be
enrolled as
constables.

23. The Town Council may lay in any public street iron plates or blocks of stone or other material (but not tramways or lines of railways) for the purpose of facilitating the passage of traffic along or across the same and may remove alter repair or renew such iron plates or blocks of stone or other material and may make byelaws for regulating the use thereof All byelaws made by the Town Council under this section shall be enforceable by such penalties as may be prescribed therein not exceeding five pounds for each contravention and in other respects shall be subject to the same conditions and provisions as byelaws made by the Town Council under the Burgh Police (Scotland) Acts 1892 to 1903 Any expenses incurred by the Town Council

Iron plates
&c. may be
laid for
facilitating
traffic.

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A.D. 1911. — under this section shall be defrayed by the Town Council as part of the expenses of the maintenance of streets and roads within the burgh. Provided that nothing in this section or any byelaws made thereunder shall authorise or empower the Town Council or any person on their behalf in laying such plates or stone or other material to break up or interfere with any tramways belonging to the corporation of the city of Glasgow or such portion of any street as is maintainable by the said corporation in terms of the Tramways Act 1870.

Inspector of weights to have powers of constables.

24. An inspector of weights and measures for the burgh shall have and may exercise all the powers conferred upon the chief constable or any officer of police or constable of the burgh by sections 419 420 and 422 of the Burgh Police (Scotland) Act 1892 and any person resisting or obstructing any such inspector in the enforcement of any of the provisions of those sections shall be liable to a penalty not exceeding five pounds recoverable as penalties for police offences are recoverable under the Burgh Police (Scotland) Act 1892.

Modification of sections 220 and 243 of Burgh Police (Scotland) Act 1892.

25. In the application to the burgh of sections 220 and 243 of the Burgh Police (Scotland) Act 1892 those sections shall be held to be amended as follows:—

(1) The words “twenty-one days” shall be substituted for the words “twenty-eight days” in section 220:

(2) The powers and duties conferred or imposed by section 243 on the burgh surveyor shall be exercised by the sanitary inspector of the burgh to whom all notices by that section directed to be sent by any owner to the burgh surveyor shall be sent.

Evidence of resolutions &c.

26. A copy of or an extract from a minute of a meeting of the Town Council or of a committee appointed by the Town Council or a copy of any order rule or regulation made by the Town Council or of any such committee certified as correct by the town clerk of the burgh shall be sufficient evidence of the passing of the resolution recorded in such minute or of the making of such order rule or regulation and of the terms thereof respectively and shall be received as evidence in all courts whatsoever.

Crown rights.

27. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject

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to the provisions of this Order any lands buildings or works A.D. 1911.
vested in or occupied by the Crown or any department of His
Majesty's Government except to such extent as His Majesty or
such department may voluntarily agree.

28. The costs charges and expenses of and incident to the Costs of
preparing for obtaining and confirming this Order and otherwise Order.
in relation thereto so far as not paid out of the special fund
constituted by this Order shall be paid by the Town Council out
of the burgh general assessment and the roads and bridges
assessment of the burgh and out of the revenue of the elec-
tricity undertaking of the Town Council in such proportions as
the Town Council may determine.

[Ch. cxxix.] *Partick Burgh Order Confirmation* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Establishment of Special Fund.")

1. The sum of five hundred pounds received by the Town Council on the first day of November one thousand eight hundred and ninety from the Glasgow District Subway Company.

2. The sum of five hundred pounds received by the Town Council on the sixteenth day of August one thousand nine hundred from Messrs. D. and W. Henderson & Co. Ltd. in respect of the closing and appropriation of a public right of way between their shipbuilding yard and the River Clyde.

3. The sum of five hundred pounds received by the Town Council on the fifteenth day of April one thousand nine hundred and four from the trustees of the Clyde Navigation in respect of the closing and appropriation of the public footpath or right of way referred to in section 10 (1) of the Clyde Navigation Act 1899.

4. The sum of eight hundred pounds received by the Town Council on the eleventh day of October one thousand nine hundred and six from the trustees of the Clyde Navigation in respect of the closing and appropriation of the public footpath or right of way referred to in section 7 of the Clyde Navigation Order 1907.

5. The sum of seven hundred and fifty pounds received by the Town Council on the twenty-fourth day of November one thousand nine hundred and six from Messrs. Barclay Curle & Co. Ltd. and the trustees of the late Sir Andrew Maclean in respect of the closing and appropriation of a public lane or passage leading from South Street to and along the River Clyde.

6. The sum of ninety-three pounds nine shillings received by the Town Council in the years eighteen hundred and eighty-four to eighteen hundred and eighty-six being the balance of certain sums provided in part by the Town Council and in part by public subscription for meeting the expenses of an action raised against the Town Council and others with the object of closing a certain public right of way.

THE SECOND SCHEDULE.

A.D. 1911.

(Referred to in the section of this Order of which the marginal note is "Renewal and discharge of bonds and mortgages.")

MINUTE OF RENEWAL--No.

19 .

It has been mutually stipulated and agreed upon that the repayment of the principal sum contained in the within bond [mortgage] shall be postponed and the same shall not be due and exigible until the _____ day of _____ nineteen hundred and _____ and that interest shall become due on the said principal sum to the date last mentioned at the rate of _____ per centum per annum and shall be paid half-yearly on presentation of the interest warrants _____ in number issued herewith.

Signature of bondholder [mortgagee]

Provost or chairman.

Town clerk.

DISCHARGE.

Received from the Corporation of Partick the within sum of
sterling
which sum with all interest due thereon is hereby discharged.

Dated at _____ the _____
day of _____ nineteen hundred and _____

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